

**Tentative Rulings and Resolution Review Hearings  
August 10, 2026  
Department 63**

**This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court’s website ([www.shasta.courts.ca.gov](http://www.shasta.courts.ca.gov)) and are available by clicking on the “Tentative Rulings” link under the “Online Services” tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.**

**\*\*\*IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.\*\*\***

**Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.**

**To appear through WebEx, please follow these instructions:**

**Call 1-(844) 517-1271 at least 10 minutes before your hearing start time.**

**The access code is 2482 635 4223. There is no attendee ID number, so just follow verbal instructions for prompt.**

**Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:**

- 1. Please mute your telephone until your case is called.**
- 2. Please do not place the call on hold.**
- 3. Minimize all background noise during your call.**
- 4. Please identify yourself, each time, prior to addressing the court.**
- 5. Disconnect when the court has completed your case or cases.**
- 6. The court prohibits the recording of these proceedings.**

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**8:30 a.m. – Law & Motion**

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**BAKER VS. TERRILL**

**CASE NUMBER: 25CV-0207907**

**Tentative Ruling on Order to Show Cause Re: Sanctions:** An Order to Show Cause issued on July 1, 2026 to Plaintiff Justin Baker, in pro per, for failure to appear on June 22, 2026. The June 22, 2026 hearing date was set on May 26, 2026 and notice was provided in the First Amended Order Granting Attorney’s Motion to be Relieved. Notice of Entry of Order was filed on June 2, 2026 reflecting service by mail on Plaintiff. Plaintiff had notice of the June 22, 2026 hearing date and did not appear. No written response to the Order to Show Cause has been filed. With no sufficient excuse for failing to appear, sanctions are imposed in the amount of \$250 against Plaintiff, in pro per. The clerk is directed to prepare an Order of Sanctions. **An appearance by Plaintiff is necessary on today’s calendar. If Plaintiff fails to appear, the Court will issue an Order to Show Cause Re: Dismissal for failure to appear on June 22, 2026 and August 10, 2026 and failure to timely prosecute.**

**CARLS VS. MCCARTY, ET AL.**

**CASE NUMBER: 23CV-0203298**

**Tentative Ruling on Petition to Approve Minor's Compromise:** This Petition for Approval of Compromise of Claim for Minor is for a settlement of minor Jaydyn Carls' claims from a dog bite incident on June 4, 2022. The Petition was filed by the minor's parent, Rena Grigalba-Carls (incorrectly listed in the Petition as Rena-Grigalba Carls), who was appointed as the minor's Guardian ad Litem on October 5, 2023. The matter was originally on calendared for hearing on June 8, 2026. Due to several defects, the Court continued the hearing to today and ordered that Petitioner correct the issues by filing an Amended Petition no later than July 27, 2026. The Court further ordered that if Petitioner could not comply with the deadline, a status statement must be filed by July 27, 2026 informing the Court of the status of any outstanding issues, the progress made for each, and the plan/timeline for filing the Amended Petition. Nothing has been filed since the last hearing on June 8, 2026.

As stated on June 8, 2026, California Rule of Court, Rule 7.950 states that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition lacks necessary information/evidence and the requested manner of distribution of the net settlement is illegal. The following issues will need to be addressed before the Court will consider granting the Petition.

- Additional information regarding the injury is required. This includes pictures and medical records that show the significance of the initial injury and the scarring that remains. Evidence regarding any future scar revision or surgeries that may be required and any mental health treatment the minor may seek to address the ongoing emotional distress must be provided.
- Attachment 10.c. is missing. The Court requests information for how the settlement is being funded (insurance proceeds or private payment). The Court also requires information regarding the policy limits for available insurance policies and the financial situation of Defendant.
- Item 12 was left completely blank despite the minor receiving medical treatment on at least two occasions. No information has been provided for any medical expenses that were paid and by whom. Item 12 must be completed and medical bills must be attached. Petitioner is required to determine if any medical expenses were paid by Medi-Cal and provide notice of the claim to the Director of Health Care Services as noted in Item 12.b.4.(a) or comply with Item 12.b.4.(b).
- Based on the attorney fee request in Item 13, counsel is requesting 40% of the gross settlement. Attachment 13.a. was not included. Counsel is ordered to review and comply with CRC 7.951. The written attorney fee agreement was not included as Attachment 17.a. Both are required.
- In Item 18.b.(5), Petitioner requests that the \$90,000 net settlement be paid or delivered to the minor's parent, without bond. This option is only available if the value of the minor's estate, including the money to be delivered, is \$5,000 or less. \$90,000 far exceeds that limit, therefore, the proposed plan is illegal. Petitioner will need to determine a different plan for the net proceeds. Petitioner is ordered to carefully review Item 18 along with the relevant portions of the Probate Code and California Rules of Court in order to determine which plan is in the best interest of the minor. The most common methods are funding a blocked account or purchasing an annuity. If the new plan is to fund a blocked account, Petitioner must provide a proposed Order to Deposit Funds in Blocked Account (Form MC-355) and Attachment 18.b.(2) must be attached to the Amended Petition. If the new plan is to purchase an annuity, Petitioner will need to provide the purchase agreement for the annuity that includes all payments to be made over the life of the annuity as Attachment 18.b.(3). Petitioner is reminded that regardless of the plan selected, the Court will require proof that the settlement funded and net proceeds were distributed per the Order Approving Compromise.
- Petitioner did not provide a proposed Order Approving Compromise (Judicial Council Form MC-351) which is a mandatory form.

- No Proof of Service was filed indicating that Defendant was served. Service of the Petition on all parties is necessary.

Due to the extensive issues with the Petition, Petitioner will need to file an Amended Petition that includes all necessary evidence. Time is of the essence as the settlement cannot fund and the minor will not have the ability to receive interest on the settlement until funded. **An appearance by counsel for Petitioner is necessary on today's calendar. Failing to appear will result in the issuance of an Order to Show Cause Re: Monetary Sanctions.**

#### **CONNEXUS CREDIT UNION VS. GEOUGE, ET AL.**

**CASE NUMBER: 25CVG-01931**

**Tentative Ruling on Order to Show Cause Re: Sanctions:** An Order to Show Cause issued on June 24, 2026 to Plaintiff Connexus Credit Union. and Counsel IDEA Law Group, P.C. for failure to timely obtain a default judgment and failure to timely prosecute. Default was entered against Defendant Jonathan Lynn Geouge on July 1, 2026, however, nothing has been filed as to Defendant Cody Jason Murphy-Mummy. The Order to Show Cause is **DISCHARGED**. The matter will be on calendar on **Monday, November 2, 2026 at 9:00 a.m. in Department 63** for status of service on Defendant Cody Jason Murphy-Mummy. If the matter is not at issue by the next hearing, the Court intends to issue an Order to Show Cause Re: Sanctions.

#### **DOE VS. SCHENK, MFC, RAS**

**CASE NUMBER: 26CV-0210220**

**Tentative Ruling on Demurrer:** Defendant, Daniel Schenk, demurs to the Second Cause of Action for Intentional Infliction of Emotional Distress, the Fourth Cause of Action for Negligence, and the Fifth Cause of Action for Fraud and Deceit alleged in the Complaint filed by Plaintiff on March 25, 2026, on the grounds that the Complaint fails to state facts sufficient to constitute a cause of action. Plaintiff opposes the demurrer.

Meet and Confer. CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Bryan Malone provides evidence of sufficient meet and confer efforts.

Request for Judicial Notice. Defendant requests the Court take judicial notice of the Complaint filed on March 25, 2026, and of the fact that Defendant is a licensed marriage and family therapist with the California Board of Behavioral Sciences. The request is granted pursuant to Evid. Code §§ 452.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). A demurrer should also be sustained if the pleading is uncertain, meaning that the pleading is ambiguous or unintelligible. CCP § 430.10(f). The Court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Second Cause of Action. Defendant demurs to the cause of action for intentional infliction of emotional distress on the grounds that the Complaint fails to allege facts that Defendant’s conduct was so extreme and outrageous as to warrant a claim. “The elements of a prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of

the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct.” *Cervantez v. J.C. Penny Co.* (1979) 24 Cal.3d 579, 593. “[T]here is liability for conduct exceeding all bounds usually tolerated by decent society, of a nature which is especially calculated to cause, and does cause, mental distress of a very serious kind.” *Christensen v. Superior Court* (1991) 54 Cal.3d 868, 905. “[T]he qualifying conduct must be so outrageous in character and so extreme in degree as to go beyond all possible bounds of decency and to be regarded as atrocious and utterly intolerable in a civilized community.” *Melovich Builders v. Superior Court* (1984) 160 Cal.App.3d 931, 936.

The Complaint alleges that (1) Defendant’s conduct was “intentional, outrageous, malicious, and done for the purposes of causing Plaintiff to suffer humiliation, mental anguish, and severe emotional distress;” (2) that Plaintiff “has suffered, and will continue to suffer special damages in the form of past and future medical costs and expenses and past and future lost earnings;” (3) and that Defendant’s conduct was the direct and proximate cause of Plaintiff’s suffering. Additionally, the complaint provides several specific examples of purported conduct by Defendant which Plaintiff alleges is outrageous. This alleged outrageous conduct includes Defendant’s explicit discussions of his own sexual habits and history. The Court finds all necessary elements for a cause of action for intentional infliction of emotional distress have been sufficiently alleged. The demurrer to the Second Cause of Action is **OVERRULED**.

*Fourth Cause of Action.* Defendant demurs to the general negligence cause of action on the grounds that the claim is duplicative of the First Cause of Action for professional negligence. Plaintiff submits on this argument. The Complaint shows that the professional and general negligence claims are both derived from the same set of facts and circumstances. The demurrer to the Fourth Cause of Action is **SUSTAINED** without leave to amend.

*Fifth Cause of Action.* Defendant demurs to the fraud and deceit cause of action on the grounds that the claim is not pled with the required heightened specificity. “The elements of fraud, which give rise to the tort action for deceit, are (1) misrepresentation (false representation, concealment or nondisclosure); (2) knowledge of falsity (or 'scienter'); (3) intent to defraud, i.e., to induce reliance; (4) justifiable reliance; and (5) resulting damage.” *Orient Handel v. United States Fid. & Guar. Co.* (1987) 192 Cal.App.3d 684, 693. “To withstand a demurrer, the facts constituting every element of the fraud must be alleged with particularity, and the claim cannot be salvaged by references to the general policy favoring the liberal construction of pleadings.” *Goldrich v. Natural Y Surgical Specialties, Inc.* (1994) 25 Cal.App.4<sup>th</sup> 772, 782. “This particularity requirement necessitates pleading facts which 'show how, when, where, to whom, and by what means the representations were tendered.’” *Lazar v. Superior Court* (1996) 12 Cal.4<sup>th</sup> 631, 644. “Even in a case involving numerous oft-repeated misrepresentations, the plaintiff must, at a minimum, set out a representative selection of the alleged misrepresentations sufficient to permit the trial court to ascertain whether the statements were material and otherwise actionable.” *Goldrich*, supra, 25 Cal.App.4<sup>th</sup> 772, 783.

Defendant argues that there are insufficient facts to show what statements were made, how they were false, how Plaintiff justifiably relied on them, or how Plaintiff was damaged. Here, the Complaint alleges that (1) Defendant represented to Plaintiff “that he would do all things necessary to diagnose, care for, and treat Plaintiff,” (2) that this representation was false; (3) that Defendant was “only interested in giving the appearance of treating her so that he could collect fees for her services;” (4) that Plaintiff “reasonably relying on his alleged professional education, training, experience, and representation, agreed to treat with Defendant” and that Plaintiff would not have done so had she known Defendant’s true intent; and (5) Plaintiff has sustained damages in the form of medical expenses and lost wages. While a representative selection of the alleged misrepresentations is acceptable, the Complaint fails to offer specific facts stating how, when, or where the representations were made. The demurrer to the Fifth Cause of action is **SUSTAINED**. As these defects could be cured by Plaintiff providing additional clarity and particularity, leave to amend will be granted.

The Demurrer is **OVERRULED** in part and **SUSTAINED** in part as outlined above. Leave to amend is granted regarding the Fifth Cause of Action in the timeframe to amend set forth in CRC 3.1320(g). Defendant provided a proposed Order that will be modified to reflect the Court's ruling.

**KNOX VS. MOHAMUD, ET AL.**

**CASE NUMBER: 23CV-0202275**

**Tentative Ruling on Motions to Compel Discovery:** Defendant Habib Bashir Mohamud filed a Motion to Compel Plaintiff's Responses to Defendant's Pre-Trial Demand for Production of Documents and a Motion to Compel Plaintiff's Responses to Pre-Trial Interrogatories. Both motions were originally noticed for August 3, 2026, however, they were continued to today at the ex parte hearing on July 23, 2026 due to Plaintiff Jamaal Knox's counsel stating that objection free responses would be provided. On August 4, 2026, Defendant filed a Notice informing the Court that responses have still not been provided. Plaintiff did not oppose the motion.

As a preliminary matter, when the motions were filed, the trial was scheduled to commence on August 11, 2026, making the August 3, 2026 hearing date less than fifteen days prior to trial. At the ex parte hearing on July 23, 2026, the Court granted Defendant's request to hear discovery motions after the cut-off date.

Merits. A party has thirty days after service to respond to a Request for Production or Interrogatories. CCP §§ 2031.260(a), and 2030.260(a). Not providing a timely response to propounded discovery results in a waiver of objections. CCP §§ 2031.300(a) and 2030.290(a). If a party to whom a discovery request is directed fails to serve a timely response, the party propounding discovery may move for an order compelling a response. CCP §§ 2031.300(b) and 2030.290(c). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Defendant has provided evidence that discovery was propounded and that Plaintiff did not provide verified responses within the required timeframe.

Sanctions. Monetary sanctions are sought in the amount of \$2,310 in each motion. This is comprised of five hours of attorney time on each motion at the rate of \$450 per hour plus a filing fee of \$60. No evidence was provided to support the hourly rate requested, which is higher than average for Shasta County. The Court finds \$300 to be a reasonable hourly rate. No breakdown was provided for the five hours requested on each motion. Given the lack of Opposition, the Court will award 3.5 hours on the Pre-Trial Demand for Production of Documents and 2.5 hours on the Pre-Trial Interrogatories motion. This reflects a reduction of 1.5 hours for not needing to review an Opposition and prepare a substantive Reply and an additional one hour reduction for attending the hearing on the Pre-Trial Interrogatories motion because the motions will be heard at the same time. This amounts to \$1,110 on the Pre-Trial Demand for Production of Documents motion and \$810 on the Pre-Trial Interrogatories motion.

Both motions are **GRANTED**. Plaintiff is ordered to provide verified, objection free responses within fifteen days of Notice of Entry of Order. Monetary sanctions are imposed in the amounts of \$1,110 and \$810 as noted above. Defendant provided proposed Orders that will be modified to reflect the Court's ruling.

**KUNAU VS. CITY OF REDDING, ET AL.**

**CASE NUMBER: 24CV-0205953**

**Tentative Ruling on Motion for Summary Judgment:** Defendant and Cross-Complainant Sysco Sacramento, Inc. ("Sysco") moves for summary judgment against Plaintiff Cody Kunau pursuant to Code of Civil Procedure section 437c on the grounds that there is no triable issue of material fact because: 1) as to the cause of action for negligence, there is no evidence Defendant breached any duty of care or that any act or omission by Defendant was a substantial factor in causing Plaintiff's injuries, and 2) as to the cause of action for battery, there is no evidence Defendant intended to cause harmful or offensive contact. In the alternative, Sysco seeks summary

adjudication. Plaintiff and Defendant and Cross-Defendant City of Redding have each filed oppositions to the Motion. The City of Redding's Opposition concerns only the cause of action for negligence.

Request for Judicial Notice: Pursuant to Evid. Code 452(c), Plaintiff requests the Court take judicial notice of the following: 1) Comprehensive Truck Size and Weight Limits Study – Highway Safety and Truck Crash Comparative Analysis Technical Report NHTSA, Chapter 3.3, Figures 6 and 7 (2015); and 2) The US Department of Transportation's Western Uniformity Scenario Analysis, Chapter 6, Roadway Geometry (2004). The requests are denied, as these documents appear to be excerpts of a technical report and an analysis performed potentially by a government agency, but do not constitute "official acts" of the legislative, executive, or judicial departments of the state.

Objections to Evidence: Plaintiff's objections to paragraphs 2, 6, 8, 10, and 16 of the Declaration of Mitchell are overruled. Defendant Sysco's objections numbers 1-3, 5-7, 10 are sustained. Defendant Sysco's objections numbers 4, 8, 9 are overruled.

Standard on Summary Judgment: The party moving for summary judgment bears the initial burden to make a prima facie showing that there are no triable issues of material fact. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850. There is a genuine issue of material fact only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* at 845. A defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1). The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. CCP § 437c(p)(2).

In ruling on a motion for summary judgment, the Court must consider not only the direct evidence presented, but also reasonable inferences to be drawn therefrom, and must view the evidence and inferences "in the light most favorable to the opposing party." CCP § 437c(c); *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 843. "Because summary judgment is a drastic measure that deprives the losing party of trial on the merits, it may not be invoked unless it is clear from the declarations that there are no triable issues of material fact." *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 304. "A summary judgment motion is directed to the issues framed by the pleadings. Those are the only issues a motion for summary judgment must address." *Van v. Target Corp.* (2007) 155 Cal. App. 4th 1375, 1387.

Plaintiff's First Amended Complaint ("FAC") generally alleges that on October 2, 2023, Plaintiff was walking on a sidewalk in the City of Redding when he was struck by tree branches which were dislodged by a passing Sysco delivery truck. The FAC states two causes of action against Defendant Sysco: the Third Cause of Action for Negligence, and the Fourth Cause of Action for Battery. Sysco seeks summary judgment as to each cause of action, and in the alternative summary adjudication to each issue raised independently.

Negligence - Breach of Duty of Care/Issue 1: whether the first cause of action for negligence fails against Sysco because there is no evidence that Erik Mitchell breached any duty of care.

The elements of a negligence cause of action are (1) the existence of a duty, (2) a breach of that duty, (3) injury to the plaintiff caused by the defendant's breach, and (4) actual damages. *Romero v. Los Angeles Rams* (2023) 91 Cal.App.5th 562, 567.

*Duty of Care.* CCP § 1714 establishes a broad, general duty of reasonable care, dictating that all individuals are responsible for injuries caused to another by their "want of ordinary care or skill" in the management of their property or person. This baseline duty applies to the operation of motor vehicles, meaning a driver must use ordinary care to prevent others from being injured as a result of their conduct. *Lawson v. Safeway Inc.* (2010) 191 Cal. App. 4th 400.

"Rowland enumerates a number of considerations ... that have been taken into account by courts in various contexts to determine whether a departure from the general rule is appropriate ... ." (*Ballard v. Uribe* (1986) 41 Cal.3d 564, 572, fn. 6 [224 Cal. Rptr. 664, 715 P.2d 624] (*Ballard*).) The factors to be balanced under *Rowland* are: "the foreseeability of harm to the plaintiff, the degree of certainty that the plaintiff suffered injury, the closeness of the connection between the defendant's conduct and the injury suffered, the moral blame attached to the defendant's conduct, the policy of preventing future harm, the extent of the burden to the defendant and consequences to the community of imposing a duty to exercise care with resulting liability for breach, and the availability, cost, and prevalence of insurance for the risk involved." (*Rowland, supra*, 69 Cal.2d at p. 113.)" *Lawson v. Safeway Inc.* (2010) 191 Cal.App.4th 400, 409.

"[T]he chief element in determining whether defendant owes a duty or an obligation to plaintiff is the foreseeability of the risk ... ." (*Dillon, supra*, 68 Cal.2d at p. 740.) Safeway argues that the risk of an accident like the one that transpired here was not reasonably foreseeable because no accidents involving obstructed views had previously occurred at this particular intersection. However, "a court's task—in determining 'duty'—is not to decide whether a particular plaintiff's injury was reasonably foreseeable in light of a particular defendant's conduct, but rather to evaluate more generally whether the category of negligent conduct at issue is sufficiently likely to result in the kind of harm experienced that liability may appropriately be imposed on the negligent party." *Lawson v. Safeway Inc.* (2010) 191 Cal.App.4th 400, 409.

Here, the risk of a tree limb being hit by a large passing truck is reasonably foreseeable. The alleged conduct at issue – failure to operate the truck with ordinary care – is sufficiently likely to result in the kind of harm experienced such that liability may appropriately be imposed. The Court's analysis in *Lawson, supra* 191 Cal.App.4th at 410, draws a close parallel to this action. In this case, as in *Lawson*, the *Rowland* factors weigh in favor of recognizing a duty here. Plaintiff was injured, and the Sysco driver's conduct was connected closely enough to the accident to qualify as a cause. Recognition of duty would help prevent future harm because drivers will be vigilant about choosing routes clear enough for their large trucks to pass through. No showing has been made that the risk involved is uninsurable. On the other hand, little or no moral blame attached to Plaintiff's conduct, as he was just walking down the sidewalk. In sum, Defendant owed a duty of care here.

*Breach.* To demonstrate a breach of the duty of care, the Plaintiff must show that the driver's conduct fell below the standard of care. In most cases, this standard is that of a "reasonably prudent person under like circumstances." *Jacobs Farm/Del Cabo, Inc. v. Western Farm Service, Inc.* (2010) 190 Cal. App. 4th 1502. This is generally a question of fact for the jury. The jury must evaluate whether a reasonably prudent driver, operating a large tractor-trailer under the same conditions, would have seen and avoided striking the overhanging tree limb. *See Cabral v. Ralphs Grocery Co.* (2011) 51 Cal. 4th 764, *Jacobs Farm/Del Cabo, Inc. v. Western Farm Service, Inc.* (2010) 190 Cal. App. 4th 1502. While compliance with general traffic laws constitutes evidence of reasonable care, it is not conclusive and does not automatically establish that the driver met the standard of care, as statutory standards represent only minimum requirements. *Jacobs Farm/Del Cabo, Inc. v. Western Farm Service, Inc.* (2010) 190 Cal. App. 4th 1502.

Here, Sysco's evidence shows that Defendant's driver, Erik Mitchell was operating his truck within his lane of travel, a safe and reasonable speed, and maintained control of the vehicle at all times. (UMFs 22-23) He did not drive onto the sidewalk, shoulder, or outside his lane, nor did he engage in any unsafe maneuver. (UMF 27) The contact at issue occurred only because a tree branch extended into the traveled portion of the roadway and

interfered with the upper portion of the truck. (UMF 24-25) Prior to the contact, Mitchell did not observe any branch extending into his lane at a height that could be safely avoided, and there were no warning signs or indicators of a hazardous condition. (UMF 26, 31) Even if none of these material facts were disputed, Sysco has failed to carry its burden to show that there is no triable issue of material fact with respect to breach. The question is not whether Mitchell was driving lawfully, but whether a reasonably prudent driver in his same situation would have seen and avoided the overhanging limb. As the City of Redding's Opposition points out, a reasonably prudent driver may have chosen to drive in the number one lane. This is a question for the jury. Additionally, Mitchell testified that he had experienced tree limbs brushing against the side and top of his truck while driving in downtown Redding on prior occasions, that tree hazards are a known risk which drivers must sometimes stop and avoid, and that he never reported this incident or other tree hazards to the City. (C-UMF 2-4) In sum, triable issues of material fact remain with respect to the issue of breach of the duty of care. Summary adjudication as to Issue 1 is **DENIED**. Therefore, summary judgment as to the Third Cause of Action for Negligence as to Defendant Sysco is also **DENIED**.

Negligence – Causation/Issue 2: whether the first cause of action for negligence fails against Sysco because there is no evidence that any act or omission by Erik Mitchell was a substantial factor causing Plaintiff's injuries.

“Causation is ordinarily a question of fact which cannot be resolved by summary judgment. Causation may be decided as a question of law if under the undisputed facts, “there is no room for a reasonable difference of opinion.” (*Nichols v. Keller* (1993) 15 Cal.App.4th 1672, 1687.)” *Romero v. Los Angeles Rams* (2023) 91 Cal.App.5th 562, 567-568.

““On the issue of the fact of causation, as on other issues essential to the cause of action for negligence, the plaintiff, in general, has the burden of proof. The plaintiff must introduce evidence which affords a reasonable basis for the conclusion that it is more likely than not that the conduct of the defendant was a cause in fact of the result. A mere possibility of such causation is not enough; and when the matter remains one of pure speculation or conjecture, or the probabilities are at best evenly balanced, it becomes the duty of the court to direct a verdict for the defendant.” *Id* at 571-572.

Sysco argues that Plaintiff cannot establish causation because he did not see the truck strike the branch and doesn't know how it became dislodged. (UMF 9-10) His belief that the truck struck the branch is based on assumption, not personal knowledge. (UMF 10) Sysco further argues that there is no evidence regarding the condition of the branch or how it fell, and that Plaintiff didn't notice any dangerous condition. (UMF 11, 17) Plaintiff does not address the issue of causation in its Opposition. However, Plaintiff's DMF 6 states that as he was “walking along the sidewalk, he heard a loud noise behind him. When he turned his body around to observe what caused the loud noise, he was struck by the falling tree branch on his head. He did not see the tree branch before it struck his head.” Plaintiff's DMF 14 states that “Mr. Mitchell stopped the delivery truck immediately after hearing the tree branch break and he saw the branch fall out of the periphery of his vision.” Moreover, the City of Redding's UMFs state that the first time Mr. Mitchell became aware that something unusual happened was when he heard the sound of the tree limb breaking. (C-UMF 8) After stopping his vehicle, Mitchell observed a pedestrian on the sidewalk next to a limb who claimed to be hurt, damage to the tree limb, damage to a nearby tree, and a dent in the top corner of the trailer, consistent with where he believed his truck impacted the tree limb. (C-UMF 10) Mitchell observed a small cut on the pedestrian's head and the pedestrian told Mitchell that his head hurt. (C-UMF 11) This evidence affords a reasonable basis for the conclusion that it is more likely than not that the delivery truck hitting the tree branch was a cause in fact of the tree branch falling and hitting the Plaintiff. There are triable issues of material fact with respect to causation, so summary adjudication is **DENIED** as to Issue 2.

Battery – Intent/Issue 3: whether the second cause of action for battery fails against Sysco because there is no evidence that Mitchell intended to cause harmful or offensive contact with Plaintiff.



“The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant’s conduct; and (4) a reasonable person in plaintiff’s position would have been offended by the touching.” *So v. Shin* (2013) 212 Cal.App.4th 652, 669 [citing CACI 1300].

“In an action for civil battery the element of intent is satisfied if the evidence shows defendant acted with a ‘willful disregard’ of the plaintiff’s rights.” *Ashcraft v. King* (1991) 228 Cal.App.3d 604, 613, internal citation omitted.) “As a general rule, California law recognizes that ‘. . . every person is presumed to intend the natural and probable consequences of his acts.’ Thus, a person who acts willfully may be said to intend ‘ “ ‘those consequences which(a) represent the very purpose for which an act is done (regardless of the likelihood of occurrence), or (b) are known to be substantially certain to result (regardless of desire).’ ” ’ The same definition is applied to many intentional torts.” *Gomez v. Acquistapace* (1996) 50 Cal.App.4th 740, 746, internal citations omitted.

Sysco argues that there is no evidence that its delivery driver Erik Mitchell intended to cause harmful or offensive contact with Plaintiff. Sysco’s evidence shows that Mitchell was operating his vehicle within his lane of travel at a safe and reasonable speed. (UMF 22-23, 27) There is no evidence that he drove toward Plaintiff, deviated from the lane, or took any action aimed at causing contact with Plaintiff. (UMF 22, 27) Mitchell was not aware of any hazardous condition involving the tree branch prior to the incident and did not observe any condition that could be safely avoided. (UMF 26, 30-31) Plaintiff argues that the driver had prior knowledge of tree limbs hitting his truck on Redding’s streets, and that the evidence shows that the truck was intentionally driven through the area where low-hanging branches were known to exist. Plaintiff argues, without citation to authority, that the doctrine of “transferred intent” applies to this case. Under this doctrine, if a person acts with the intent to make a wrongful contact with or cause apprehension of contact with one person, but instead inadvertently or accidentally makes contact with a third person, the actor is civilly liable for battery to the third person *Singer v. Marx* (1956) 144 Cal. App. 2d 637. The Court finds that the doctrine of transferred intent does not apply here. Plaintiff has not identified any third person involved in the incident.

Additionally, the intent to drive a truck through Redding’s streets is not the intent required here. Plaintiff must show the driver proceeded down the street intending those consequences which (a) represent the very purpose for which an act is done, i.e. meaning to hit the Plaintiff by dislodging the tree branch, or (b) are known to be substantially certain to result, i.e. knowing that the dislodging of a branch was substantially certain to result by driving down the street. Plaintiff presents no evidence that the driver perceived either the Plaintiff or the low hanging branch prior to the incident, and no evidence that the driver acted with willful disregard for the Plaintiff. Therefore, summary adjudication as to the Fourth Cause of Action for Battery against Sysco is **GRANTED**.

Sysco’s Motion for Summary Judgement is **DENIED**. The alternative relief requested for Summary Adjudication is **DENIED** as to Issues 1 and 2 and **GRANTED** as to Issue 3. The Court has reviewed the proposed order submitted with this Motion and finds that it is not tailored to the causes of action at issue. Sysco is directed to submit a proposed order consistent with this tentative ruling.

## **LVNV FUNDING LLC VS. RIDGWAY**

**CASE NUMBER: 26CVG-00166**

**Tentative Ruling on Motion for Order Deeming Request for Admissions Admitted:** Plaintiff LVNV Funding, LLC. seeks an order deeming the truth of the matters specified in Plaintiff’s Requests for Admission, Set One admitted by Defendant Shannon Ridgway. Despite being timely noticed with the motion, Defendant not file an Opposition.

When a party fails to respond to Requests for Admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Plaintiff’s moving

papers sufficiently demonstrate that Defendant has failed to respond to Request for Admissions, Set One within the required time frame. Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390.

Monetary sanctions are mandatory per CCP § 2033.280(c). Plaintiff seeks \$810 in monetary sanctions which is comprised of one hour already spent and two anticipated hours at the rate of \$250 per hour plus the \$60 filing fee. The Court finds the hourly rate to be reasonable and awards one hour for time already spent. Given that there is no Opposition, one additional hour will be awarded if Plaintiff's counsel attends the hearing. The \$60 motion filing fee is awarded.

The motion is **GRANTED**. Defendant is deemed to have admitted as true each of the items contained in Plaintiff's Request for Admissions, Set One. Objections are waived. Sanctions will be awarded in either the amount of \$310 or \$560 depending on whether Plaintiff's counsel attends the hearing. Plaintiff provided a proposed Order, however, the contents of the Requests for Admission are not included. Plaintiff will need to submit a proposed Order that includes the text of the Requests for Admission being deemed admitted.

#### **IN RE: MCKINNON**

**CASE NUMBER: 26CV-0210719**

**Tentative Ruling on Petition for Change of Name:** Petitioner Wendy Marie McKinnon aka Wendy Marie Parten aka Wendy Marie Rogers aka Wynda Marie Rogers seeks to change her name to Wendy Marie McKinnon. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. There is a discrepancy between the Order to Show Cause and the Decree Changing Name. The name Wynda Marie Rogers is listed in the Decree, but not the Order to Show Cause. An appearance will be necessary to confirm with Petitioner what names should be listed in the Decree Changing Name. Once clarified, the Court intends to **GRANT** the Petition. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

#### **SYNCHRONY BANK VS. CLIFTON**

**CASE NUMBER: 24CVG-01822**

**Tentative Ruling on Order to Show Cause Re: Dismissal:** An Order to Show Cause Re: Dismissal issued on June 23, 2026 for Plaintiff's failure to timely seek entry of default and failure to timely prosecute. This is a collections case filed on December 9, 2024. CRC 3.740(f) provides that a plaintiff must obtain a default judgment within 360 days of filing the complaint. Plaintiff filed a response that provides an inadequate excuse for the delay. Per counsel, the matter settled in April of 2025. There is no valid reason that Plaintiff has not yet filed a Notice of Settlement. Counsel stated that the payment plan will be complete in November of 2026. Given how close in time that is, the Court will continue hearing on the Order to Show Cause to **Monday, December 14, 2026 at 8:30 a.m. in Department 63**. If Plaintiff has not obtained a default judgment or dismissed the case by December 14, 2026, the Court will dismiss the matter without prejudice pursuant to Gov. Code § 68608(b). **No appearance is necessary on today's calendar.**

#### **THE PEOPLE OF THE STATE OF CALIFORNIA, ET AL. VS. COUNTY OF SHASTA, ET AL.**

**CASE NUMBER: 26CV-0211092**

**Tentative Ruling on Motion for Leave to File Amicus Brief in Support of Petitioners:** Several advocacy organizations including Asian Americans Advancing Justice, Southern California, Asian Law Caucus, Disability Rights California, League of Women Voters of California Education Fund, League of Women Voters of Redding Area, ACLU of Northern California, ACLU of Southern California, and ACLU of San Diego & Imperial Counties seek leave to file an amicus brief in this matter. The motion is opposed by Real Parties in Interest (RPI) Jim Burnett, Kari Chilson, Richard Gallardo, Laura Hobbs, and Diedre Holliday. Petitioners The People of the State of California, ex rel, Rob Bonta, Attorney General of the State of California, and Shirley N. Weber PH.D., in her

official capacity as Secretary of State and Respondents County of Shasta and Clint Curtis, in his official capacity as Shasta County Clerk and Registrar of Voters do not oppose the motion.

The Petition in this matter seeks a Writ of Mandate and both injunctive and declaratory relief related to Measure B, which passed with a majority vote in the June 2, 2026, primary election. The proposed amici in this matter are all non-profit organizations with a history of advocating for voting rights.

Amici curiae, literally “friends of the court,” perform a valuable role for the judiciary precisely because they are nonparties who often have a different perspective from the principal litigants. “Amicus curiae presentations assist the court by broadening its perspective on the issues raised by the parties. Among other services, they facilitate informed judicial consideration of a wide variety of information and points of view that may bear on important legal questions.”

*Connerly v. State Personnel Bd.* (2006) 37 Cal. 4th 1169, 1177 quoting *Bily v. Arthur Young & Co.* (1992) 3 Cal. 4th 370, 405 fn. 14.

Amicus curiae briefs are common at the appellate level and permitted in the Court of Appeal pursuant to CRC 8.200(c). There is no corresponding rule at the trial court level. Instead, whether to grant leave to file an amicus curiae brief is left to the sound discretion of the Court. In the absence of a specific rule, the Court looks to the rules that exist for other courts. The Court notes that the proposed amici filed a motion that contains all the information required by CRC 8.200(c). The motion was made on a standard noticed timeframe. While RPI argued very strenuously that the timing of the motion was intended to prejudice RPI, the Court does not find any merit to that argument. One of two counsel being on vacation does not result in a halt to litigation, especially in a time sensitive matter such as this Petition.

RPI also argue that the proposed brief raises new issues not raised by Petitioners. The general rule is that amicus curiae must accept the issues made and propositions urged by the parties and that any additional questions presented in a brief filed by an amicus curiae will not be considered. *California Assn. for Safety Education v. Brown* (1994) 30 Cal. App. 4th 1264. It does not appear that significant new issues are raised. The Court finds that the proposed amicus brief would assist the Court in this matter. The Court exercises its discretion to grant leave to allow the filing of the proposed brief.

The motion is **GRANTED**. Proposed Amici provided a proposed Order that will be executed by the Court. The proposed brief is attached to the moving papers. The Court accepts the brief attached to this motion as appropriately “combined” with the application. (CRC 8.200(c)(4).) Pursuant to CRC 8.200(c)(6), the Court grants any party 10 court days to file an answer to the amicus brief, should they wish to do so.

## **TILTON PACIFIC CONSTRUCTION, INC, VS. JSK JJ INVESTMENTS, LLC**

**CASE NUMBER: 25CV-0208796**

**Tentative Ruling on Order to Show Cause Re: Sanctions:** An Order to Show Cause issued on June 24, 2026 to Plaintiff Tilton Pacific Construction, Inc. and Counsel Van De Poel & Levy LLP for failure to timely serve the Complaint. Plaintiff filed a response that provides sufficient excuse for the delay and has also filed a Proof of Service of Summons. The Order to Show Cause is **DISCHARGED**. The matter will be on calendar on **Monday, October 12, 2026 at 9:00 a.m. in Department 63** for status of responsive pleading and, if appropriate, trial setting.

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**9:00 a.m. – Review Hearings**

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**BAKER VS. TERRILL**

**CASE NUMBER: 25CV-0207907**

This matter is on calendar for review regarding status of counsel. Counsel for Plaintiff was recently relieved and Plaintiff did not appear on the last court date. **An appearance is necessary on today's calendar.**

**BARTON, ET AL. VS. NORTH REDDING HOSPITALITY LLC**

**CASE NUMBER: 25CV-0208230**

This matter is on calendar for a trial setting conference. The matter is at issue. The Court designates this matter as a Plan III case and intends to set the matter for trial no later than June 29, 2027. Plaintiff has posted jury fees but Defendant has not. Defendant is granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

**BERG VS. GRIFFIN**

**CASE NUMBER: 25CV-0208647**

This matter is on calendar for a trial setting conference. The matter is at issue. The Court designates this matter as a Plan II case and intends to set the matter for trial no later than March 9, 2027. Neither party has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

**CAL TREES LLC VS. MAXIMUS TREE WORKS, LLC, ET AL.**

**CASE NUMBER: 24CV-0205268**

This matter is on calendar for review regarding status of default and default judgment, The Answers filed by Defendants Maximus Tree Works, LLC and Johnnie Morales were stricken on June 22, 2026 and Plaintiff stated that defaults would be sought. Plaintiff has not filed anything since the last hearing. The matter is continued to **Monday, September 21, 2026 at 9:00 a.m. in Department 63** for status of defaults. If Plaintiff has not gotten the matter at issue by the next hearing, Plaintiff is ordered to file a status statement explaining the delay no less than five court days prior to the hearing. **No appearance is necessary on today's calendar.**

**CASHMAN, ET AL. VS. DEPTUCH, ET AL.**

**CASE NUMBER: 25CV-0207830**

This matter is on calendar for review regarding status of responsive pleading and trial setting. The Court notes that Defendants James J. Deptuth and Amber L. Deptuth have now filed an Answer. The Deptuths also filed a Cross-Complaint that appears to name as Cross-Defendants Eugene Cashman, Deborah Cashman, and Pacific Gas & Electric Company, however, the Cross-Defendants are only listed in the body and not in the caption. No responsive pleadings have been filed as to the Cross-Complaint. Plaintiffs filed a status statement informing the Court that Plaintiff's counsel has left the firm and Plaintiffs are in the process of obtaining new counsel. The matter is continued to **Monday, November 9, 2026 at 9:00 a.m. in Department 63** for status of counsel for Plaintiffs and status of Cross-Complaint. The parties are ordered to file a status statement at least five court days prior to the hearing. **No appearance is necessary on today's calendar.**

**FERGUSON VS. SANCHEZ**

**CASE NUMBER: 24CVG-01998**

This matter is on calendar for review regarding trial setting. The previous trial date was vacated due to the unavailability of a courtroom. The Court designates this as a Plan III matter and intends to set the matter for trial no later than December 15, 2026. Plaintiff has waived the right to a jury and requested a court trial. Defendant

posted jury fees. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for jury trial. **An appearance is necessary on today's calendar.**

**MARTINEZ VS. SATKAAR GROUP INVESTMENTS, CORP.**

**CASE NUMBER: 25CV-0208602**

This matter is on calendar for a trial setting conference. The parties have filed a joint status statement informing the Court that Plaintiff's counsel has left the firm and Plaintiff is in the process of obtaining new counsel. The matter is continued to **Monday, November 9, 2026 at 9:00 a.m. in Department 63** for status of counsel for Plaintiff and trial setting. The parties are ordered to file a status statement at least five court days prior to the hearing. **No appearance is necessary on today's calendar.**

**PARRISH VS. ALLIANCE RV, LLC, ET AL.**

**CASE NUMBER: 25CV-0207009**

This consolidated matter is on calendar for review regarding status of the case and trial setting. The Court granted summary judgment on the Complaint filed in Case 207009, however, the Complaint that was originally filed on Case 208691 is still active. At the Mandatory Settlement Conference on June 1, 2026, the Court ordered the parties to file status statements at least five days prior to today's review hearing. No status statements have been filed. The parties are ordered to meet and confer regarding the Complaint originally filed in Case 208691. Absent a request otherwise, the Court intends to set the matter for trial. The Court designates this matter as a Plan II case and intends to set the matter for trial no later than March 9, 2027. Neither party has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. **An appearance is necessary on today's calendar**

**PHILLIPS, ET AL. VS. PRIME HEALTHCARE SERVICES, INC., ET AL.**

**CASE NUMBER: 25CV-0208680**

This matter is on calendar for status of the case. The matter is not at issue and there are three Demurrers noticed for August 24, 2026. The matter is continued to **Monday, August 24, 2026 at 9:00 a.m. in Department 63** for status of the case. **No appearance is necessary on today's calendar.**

**PIKE, ET AL. VS. VUKSINICH, ET AL.**

**CASE NUMBER: 24CV-0206718**

This matter is on calendar for review regarding status of service. The matter is not at issue. Defendant Crystal Wells Vuksinich has appeared and Plaintiff filed an Affidavit of Publication as to All Persons Unknown on March 21, 2025. On April 30, 2026, the Court authorized service by publication on Doe Defendant Seirra Kells Oneto, however the Affidavit of Publication filed on July 10, 2026 was not directed at Doe Defendant Sierra Kells Oneto and does not include her name anywhere in the publication. Request for Entry of Default as to Doe Defendants Robert Kells and Mariah Kells Heiser was denied on May 26, 2026. While both signed a Notice of Acknowledgment, there is no accompanying POS-010, which is required. The matter is continued to **Monday, November 2, 2026 at 9:00 a.m. in Department 63** for status of service. Plaintiff is ordered to take the necessary steps to get the matter at issue prior to the next hearing and to file a status statement no less than five court days prior to the hearing. **No appearance is necessary on today's calendar.**

**CHATHA, ET AL. VS. TORNADO ALLEY TURBO, INC., ET AL.**

**CASE NUMBER: 22CV-0200483**

This matter is on calendar for confirmation of purchase of annuity. Plaintiffs' counsel filed a declaration on July 10, 2026 that provides confirmation of purchase. It appears that this matter can now be dismissed. Plaintiffs will need to file a Request for Dismissal as the one provided as Exhibit B is stapled to the declaration and cannot be separated. The matter is continued to **Tuesday, September 8, 2026 at 9:00 a.m. in Department 63** for status of dismissal. The review hearing will vacate when the matter is dismissed. **No appearance is necessary on today's calendar.**

**SCHJOTH, ET AL. VS. LYNCH**  
**CASE NUMBER: 25CV-0208162**

This matter is on calendar for review regarding status of default judgment. Default was entered against Defendant on May 28, 2026. A default judgment should have been obtained within 45 days of May 28, 2026. CRC 3.110(h). A default judgment packet has not been submitted. The matter is continued to **Monday, October 19, 2026 at 9:00 a.m. in Department 63** for status of default judgment. If a default judgment is not obtained prior to the next review hearing, the Court intends to issue an Order to Show Cause Re: Sanctions for failure to timely obtain a default judgment. **No appearance is necessary on today's calendar.**

**SLAUGHTER VS. PACIFIC COAST SUPPLY, LLC**  
**CASE NUMBER: 25CV-0208807**

This matter is on calendar for review regarding status of arbitration. The parties filed a joint status statement informing the Court that an arbitrator has been selected, however, an arbitration date has not been set. The matter is continued to **Monday, February 8, 2027 at 9:00 a.m. in Department 63** for status of arbitration. The parties are ordered to file a status statement at least five court days prior to the hearing. **No appearance is necessary on today's calendar.**

**STEVENSON, ET AL. VS. MERCY MEDICAL HOSPITAL, ET AL.**  
**CASE NUMBER: 25CV-0206834**

This matter is on calendar for review regarding status of service and responsive pleadings. The matter is not at issue despite numerous continuances and an Order to Show Cause Re: Sanctions issuing. The Court notes the following defects with service of the First Amended Complaint:

- Dignity Health, no proof of service for FAC.
- Jesse Arnold ACNP/FNP, dismissed from Complaint on August 12, 2025 but then renamed in FAC and not served.
- Jeremy Wellman PA, dismissed from Complaint on August 12, 2025 but then renamed in FAC and not served.
- Matthew Herring MD, not served with FAC.
- Julie McClelland MD, dismissed from Complaint on February 3, 2026 but then renamed in FAC and not served.
- Kiruba Dharaneeswaran MD, not served with FAC. Demurrer to Complaint dropped from calendar on April 20, 2026 based on filing of FAC.

Plaintiffs did not file a status statement. **An appearance is necessary on today's calendar. Plaintiffs' counsel will be required to provide an oral update regarding all bullet points above. If Plaintiffs are no longer proceeding against any named Defendant, the Court will accept an oral dismissal at the review hearing.**

**SUBWAY REAL ESTATE, LLC VS. ROSARIO SABET, ET AL.**  
**CASE NUMBER: 23CV-0202926**

This matter is on calendar for review regarding status of pleadings and trial setting. Plaintiff has still not answered the Cross-Complaint. At the last hearing on July 20, 2026, Plaintiff's counsel stated that Plaintiff had not been served with the Cross-Complaint. Counsel for Cross-Complainants stated that the Cross-Complaint had been served. The Court notes that a proof of service is attached to the Cross-Complaint indicating electronic service on Plaintiff on June 4, 2026. If Plaintiff does not file a responsive pleading, Cross-Defendants may seek entry of default. The matter is continued to **Tuesday, September 8, 2026 at 9:00 a.m. in Department 63** for status of responsive pleading or default, and trial setting. The parties are ordered to file a status statement no less than five court days prior to the next hearing. **No appearance is necessary on today's calendar.**

**WELD, ET AL. VS. FCA US LLC**  
**CASE NUMBER: 25CV-0207509**

This matter is on calendar for review regarding status of judgment/dismissal. Notice of Conditional Settlement was filed on March 12, 2026 indicating the matter would be dismissed no later than June 9, 2026. The matter has not been dismissed. The matter is continued to **Monday, October 12, 2026 at 9:00 a.m. in Department 63** for status of dismissal. The Court intends to dismiss the matter without prejudice on October 12, 2026 per CRC 3.1385 unless good cause is presented. Any good cause must be presented at or before the October 12, 2026 hearing. **No appearance is necessary on today's calendar.**